

agreement and the absence of an enforceable agreement, that is not what occurred here. Instead, [Sepanossian's] breach of contract claim pleaded the existence of ... enforceable agreement[s] and [his] unjust enrichment claim did not deny the existence or enforceability of [those] agreement[s]. [Sepanossian is] therefore precluded from asserting a quasi-contract claim under the theory of unjust enrichment." *Sepanossian v. National Ready Mixed Concrete Co.* (2023) 97 Cal.App.5th 192, 207 (internal quotations and citations omitted).

Here, Plaintiff has plead inconsistent claims that allege both the existence of an enforceable agreement and the absence of an enforceable agreement, which gives rise to the quasi-contract claim under the theory of unjust enrichment. This is permissible as discussed in *Sepanossian*. The cause of action is adequately pled. The demurrer as to the Thirteenth Cause of Action is **OVERRULED**

Ninth COA – Conspiracy. Great American argues that this is not a stand-alone cause of action. "Conspiracy is not a cause of action, but a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. (*Wyatt v. Union Mortgage Co.* (1979) 24 Cal.3d 773, 784.) By participation in a civil conspiracy, a coconspirator effectively adopts as his or her own the torts of other coconspirators within the ambit of the conspiracy. (*Ibid.*) In this way, a coconspirator incurs tort liability co-equal with the immediate tortfeasors." *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510-511. "Conspiracy is not an independent tort; it cannot create a duty or abrogate an immunity. It allows tort recovery only against a party who already owes the duty and is not immune from liability based on applicable substantive tort law principles." *Id.* at 514. Plaintiff's ninth cause of action for conspiracy fails to state sufficient facts to constitute a cause of action, because it does not specify the underlying tort theory that is the basis for the claim. The demurrer as to the Ninth Cause of Action is **SUSTAINED** with leave to amend.

Great American's Demurrer is sustained with leave to amend as to the fourth and ninth causes of action, and is overruled as to the third, fifth, sixth, and thirteenth causes of action. Great American is directed to submit a new proposed order consistent with this ruling. Plaintiff will have 20 days' leave to file a Second Amended Complaint from notice of entry of order.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.

CASE NUMBER: 26CV-0209907

Tentative Ruling on Motion to Strike: Defendant Great American Assurance Company ("Great American") moves pursuant to CCP 435 and 436 to strike paragraphs 164, 165, 208, 272, 273, and 274 (except the last sentence) from the First Amended Complaint. Plaintiff concedes with respect to paragraph 208 and opposes as to the rest.

Meet and Confer. "Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." CCP § 435.5(a). The Court finds that Defendant has satisfied the meet and confer requirement.

Request for Judicial Notice: Great American requests the Court take judicial notice of: 1) the records of the California Dept. of Insurance relating to Charity One Insurance Agency, attached as Exhibit 1; 2) That Charity One has held licenses issued by the Dept. of Insurance to act as an agent-broker since June 28, 2025, as shown by Exhibit 1. The request is denied as it is not clear that this document qualifies as an "official act of the legislative, executive, and judicial departments of the state," and is not capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.

Merits. The Court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon

terms it deems proper:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

CCP § 436

A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” CCP § 437(a).

Great American Moves to strike the following from the First Amended Complaint: 1) paragraphs 164, 165 on the grounds that Great American has no negligence duty of care; 2) paragraph 208 because “Brandt fees” are not a proper remedy for breach of contract; 3) paragraph 272-274 (except for last sentence) because Great American can’t be held liable for complying with the statutory mandate that it only issue policies through licensed brokers and agents, because it has no duty to investigate or verify the accuracy of representations made to it by Axiom or any other policy holder represented by Charity One.

Paragraphs 164 and 165: Great American moves to strike paragraphs 164 and 165 on the ground that insurers owe no direct negligence duty of care to their policyholders in connection with claim handling or underwriting.

Insurers and their adjusters generally owe no negligence duty of care to policyholders. *Sanchez v. Linsey Morden Claims Services, Inc.* (1999) 72 Cal.App.4th 249, 253-254; *Chateau Chamberay Homeowners Ass’n v. Associated International Ins. Co.* (2001) 90 Cal.App.4th 335, 351. The remedy for improper claim handling is a claim for breach of the implied covenant of good faith and fair dealing. *Id.*

Axiom argues that tort claims are available where the insurer's wrongful acts are independent of the contract, citing *Bock v. Hansen* (2014) 225 Cal.App.4th 215. *Bock* is distinguishable. *Bock* addressed a claim for negligent misrepresentation brought against an individual insurance adjuster, expressly distinguishing that claim from one for negligent adjusting. The allegations in paragraphs 164 and 165 concern Great American's conduct in its role as an insurer, specifically the investigation of the claim, the sending of a fraud accusation letter, and the denial of coverage. These are claim-handling functions governed by the implied covenant of good faith and fair dealing, not by a negligence duty of care.

To the extent Axiom wishes to pursue a negligent misrepresentation theory grounded in specific affirmative false statements independent of the claim-handling process, that claim is not what is pleaded in these paragraphs, and such a theory would need to be specifically alleged. The Motion to Strike is **GRANTED** with leave to amend as to Paragraphs 164 and 165.

Paragraph 208: Plaintiff concedes that the Brandt fee demand is misplaced in the breach of contract count. According to Plaintiff, the parties discussed this in meet and confer, and Plaintiff agreed to re-plead under the breach of implied covenant claim. The Motion to Strike is **GRANTED** as to Paragraph 208. Leave to amend is granted to include the Brandt fee demand under the breach of implied covenant claim.

Paragraphs 272-274: Great American moves to strike paragraphs 272 through 274 of the Twelfth Cause of Action, which allege that Great American engaged in unfair business practices by relying on intermediaries without adequate oversight, failing to maintain feedback mechanisms to identify defective policies placed by Charity One, and failing to address foreseeable underinsurance outcomes. Great American contends these allegations are irrelevant and improper because the conduct described is either legally mandated or prohibited by settled law. The Court finds that the FAC alleges systemic failures in oversight, knowing exposure of insureds to undisclosed

underinsurance risk, and the maintenance of a distribution system with known defects. Those allegations do not describe conduct that is legally mandated. They describe the manner in which Great American allegedly operated within the permitted structure. These paragraphs are not false, irrelevant, or improper. Court finds no basis to strike these paragraphs under CCP § 436. The Motion to Strike is **DENIED** as to Paragraphs 272-274.

Great American's Motion to Strike is granted in part and denied in part as detailed above. Great American is directed to submit a new proposed order consistent with this ruling. Plaintiff will have 20 days' leave to file a Second Amended Complaint from notice of entry of order.

BUTLER, III VS. SHOEMAKER
CASE NUMBER: 25CV-0208353

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 30, 2026 to Plaintiff John Butler III and counsel, Law Office of Natalie R. Ludwig for failure to timely serve Defendant as required by CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on August 4, 2025. Plaintiff filed a declaration in anticipation of the May 4, 2026 Mandatory Settlement Conference. On June 11, 2026, Plaintiff filed an additional declaration, but the information in that declaration shows only minimal effort toward service of Defendant, and provides no information on dates that the efforts were made. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to impose monetary sanctions in the amount of \$250.**

CAPITAL ONE, N.A. VS. FORTNER
CASE NUMBER: 25CVG-00896

Tentative Ruling on Discovery Motions: Plaintiff Nicole D. Fortner filed the following motions on May 18, 2026:

- Motion for Order Deeming Matters Admitted
- Motion for Order Compelling Initial Responses to Form Interrogatories, Set One and Special Interrogatories, Set One
- Motion for Order Compelling Plaintiff's Initial Responses to Demand for Production of Documents, Set One
- Motion for Order Precluding Evidence at Trial for Failure to Provide Sufficient Bill of Particulars

Each motion has a June 15, 2026 hearing date and requests to reopen discovery. On June 10, 2026, Defendant tardily filed proofs of service as to all motions. Plaintiff filed oppositions to two of the motions on June 11, 2026. Based upon the late filings by both parties, the Court intends on continuing the hearing on the discovery motions and vacating the currently set trial. Defendant's four motions are continued to **Monday, July 13, 2026 at 8:30 am in Department 63**. The trial date of June 29, 2026, is **VACATED**. The matter will be calendared for trial resetting for **Monday, July 13, 2026, at 9:00 am in Department 63**.

HALE VS. PERRIN CONSTRUCTION, INC.
CASE NUMBER: 25CV-0208539

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: Plaintiff Shawn Hale brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against Defendant Perrin Construction, Inc. The First Amended Complaint was filed on March 10, 2026. The parties have settled the matter for a total of \$578,000 and seek preliminary approval by the Court.

The law favors the settlement of lawsuits, particularly in complex litigation, where they save time and resources. *Neary v. Regents of the University of California* (1992) 3 Cal. 4th 273, 277-281 (superseded by statute on other